MISHECK NYAMUZHANDA
versus
SHERIFF OF HIGH COURT OF HARARE
and
VEVHU RESOURCES (PVT) LIMITED

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 18 May and 02 June 2026

Urgent Chamber Application

T Chinyan'anya, for the applicant
No appearance for the first respondent
A Mtima, for the second respondent

WAMAMBO J: This is an urgent chamber application for stay of execution pending the final determination of the applicant's application for rescission of judgment.

The applicant sets out that, on 3 March 2026, the second respondent issued summons against him, seeking his eviction from Stand 921, Lot 14, Spitzkop, Zvimba District. The applicant avers that, as a result of non-appearance, a default judgment was subsequently granted against him. Central to the applicant's complaint is that he was never personally served with the summons and, consequently, he had no knowledge of the proceedings at the time when he ought to have defended the matter. In support of this contention, the applicant draws the court's attention to the Return of Service, which, according to him, indicates that the summons was affixed to "an outer grey door" on 20 March 2026, with the process server recording that tenants allegedly refused service.

The applicant states that he remained in total ignorance of the litigation until after judgment had been issued. He submits that, on the merits, he has a *bona fide* defense which raises triable issues and which warrants the rescission of the default judgment. The applicant explains that the eviction sought by the second respondent is founded on a Memorandum of

Agreement with the Government dated 27 June 2019, and that he intends to contest the basis upon which eviction is being pursued. He further asserts that he is entitled to demonstrate that his occupation is lawful and that the relief sought by the second respondent cannot be sustained as pleaded and as determined by default.

The applicant also addresses the requirement of urgency. He avers that the second respondent is moving to execute the judgment, and that execution will include the demolition of structures. The applicant contends that if the stay is not granted immediately, he will suffer irreparable harm before his application for rescission of judgment is heard and finalised. The applicant emphasises that the execution steps contemplated by the second respondent will render the rescission application nugatory, as his continued occupation and possession of the affected property will be permanently disturbed prior to the court determining the merits of his challenge. Accordingly, the applicant submits that the balance of convenience favours the grant of a stay of execution to preserve the status *quo* pending finality of the rescission proceedings.

In response, the second respondent filed a notice of opposition. The second respondent raised points *in limine*, contending, *inter alia*, that the applicant's application for a stay of execution should not be granted and/or that the application is opposed on legal and procedural grounds.

1. Dirty hands

The second respondent contends that the applicant has approached this court with dirty hands. It is alleged by second respondent that, when the sheriff attempted to execute the order granted under case number HCH 1246/26, the applicant unlawfully and violently resisted the execution process. The second respondent further alleges that the applicant, together with a group of unidentified individuals, assaulted the process of the court by stoning the sheriff's vehicle and obstructing the lawful execution of the court order.

In support of these allegations, the second respondent avers that a complaint relating to obstruction of the course of justice has been opened at Warren Park Police Station. On this basis, the second respondent submits that it is a well-established principle that a litigant seeking equitable or discretionary relief must come to court with clean hands, and that the conduct complained of disentitles the applicant to the discretionary relief sought.

2. Defective certificate of urgency

The second respondent further argues that the certificate of urgency is materially defective. It is contended that the purported urgency is not supported by any imminent harm that cannot be addressed through the ordinary processes of the court. The second respondent alleges that the legal practitioner purporting urgency relies on speculative and unverified assertions, rather than objective facts placed before the Court.

The second respondent also contends that the certificate fails to disclose a proper factual foundation demonstrating why the matter could not be heard in the ordinary course. It is further asserted that the applicant was duly served with the summons, as evidenced by the return of service. In consequence, the second respondent avers that the applicant's suggestion that he did not see the summons is not true.

Additionally, the second respondent points out that the applicant alleges occupation of Stand Number 1359, Lot 4, Spitzkop, Zvimba, but asserts that occupation alone does not amount to ownership or confer a legal basis to resist eviction. The second respondent also states that, it appeared that the legal practitioner misrepresented the existence of an application for rescission of judgment in paragraph 7 of the certificate of urgency; however, counsel for the second respondent later indicated that the rescission application had indeed been filed. Despite this clarification, the second respondent maintains that a legal practitioner must attest to urgency on the basis of actual, verifiable facts.

3. Failure to plead prospects of success

The second respondent further submits that the applicant has failed to plead and demonstrate prospects of success. It argues that, because the applicant seeks a stay of a court order, the applicant bears the duty to place sufficient facts before the court regarding the basis for the intended rescission and the likelihood that such rescission would succeed. The second respondent maintains that the applicant has failed to justify why execution should not proceed, and further failed to set out the nature, basis, and substance of the prospects of success relied upon to support the grant of a stay.

4. Defective relief

The second respondent also contends that the application is defective in relation to the relief sought. It is asserted that the papers fail to clearly disclose the nature of the relief being pursued. The second respondent further alleges that the relief sought is vague, contradictory, and procedurally irregular. In particular, it is submitted that the applicant seeks relief premised upon an intended application for rescission of default judgment, yet no rescission application was initially placed before this court at the time of filing. However, Counsel for the second respondent notes that the rescission application was filed thereafter. The second respondent argues that the "interim" relief sought is, in effect, final in operation, whilst the "final" relief is framed in interim terms—creating procedural and substantive inconsistency.

In response to the points *in limine*, counsel for the applicant submitted that there is no criminal reference number available to indicate that the sheriff was assaulted. Counsel further argued that the provision of a criminal reference number would have assisted the court in verifying the allegations made by the second respondent.

The respondent raised several points *in limine*, and this court will deal with them seriatim. First, the respondent contends that the applicant has approached the court with "dirty hands." This court finds it difficult to assess the allegation that the Sheriff was assaulted in the absence of either a medical report or a police report. In the circumstances, the first point *in limine* is dismissed.

Second, the respondent argues that the certificate of urgency is defective because the legal practitioner who attested to it allegedly indicated that there was an application for rescission of judgment, yet no such application had been filed at the relevant time. That point is dismissed because the second respondent has since indicated that the application for rescission of judgment has been filed.

Third, the respondent submits that the applicant has failed to demonstrate prospects of success. However, upon realisation that the application for rescission of judgment has been filed, it is prudent that the matter be heard so as not to render the application academic. It should further be noted that if a stay of execution is not granted, the rescission application would effectively be rendered academic. A matter is generally "academic" where it no longer has practical effect for the parties or where the court cannot grant any effective relief, resulting in the issue being hypothetical or moot rather than live. In this regard, it is also significant that, unlike

an order granted by consent, the impugned order was granted in default. This court will therefore exercise lenience and allow the matter to be heard on the merits in the presence of both parties. See *Phiri* v *Phiri* HB45/2003 per Ndou J, where it was stated at page 2 that:

> "The court will not insist upon strict observance of the formalities but will seek to ascertain the truth regardless of technicalities."

That pronouncement must, however, not be read as an endorsement of non-compliance with rules where the matter can be finalised on the merits. The interests of justice are best served by hearing the matter. Accordingly, the third point *in limine* is dismissed.

Fourth, the second respondent contends that the relief sought by the applicant is defective and further argues that the draft order is defective. The second respondent further contends that it is trite that a court order must be clear, certain, and capable of practical execution. However, it should also be borne in mind that a draft order is not itself a final order of this court. Given the circumstances of this case—namely that there is a default judgment and that an application for rescission of judgment is in progress—this court will not be unduly rigid in the application of technical rules, where it can properly exercise its discretion and direct that the judgment be served. Additionally, there is no demonstrable prejudice to the respondent if a stay of execution is granted, as such an order is not final; it merely temporarily suspends further steps pending the determination of the rescission application. In the premises, the fourth point *in limine* is dismissed.

In *Dilwin Investments (Pvt) Ltd t/a Formscaff* v *Jopa Eng Co (Pvt) Ltd* HH 116/98, Gillespie J stated at page 1 that:

> "A party who brings proceedings urgently gains a considerable advantage over persons whose disputes are being dealt with in the normal course of events. This preferential treatment is only extended where good cause can be shown for treating one litigant differently from most litigants. For instance, where, if it is not afforded, the eventual relief will be hollow because of the delay in obtaining it."

In this matter, the applicant has shown good cause for urgency, particularly in view of the second respondent's confirmation that an application for rescission of judgment has been filed, which defines the urgency and the need for interim relief.

Accordingly, the court makes the following order:

TERMS OF FINAL ORDER SOUGHT

That the execution of any judgment granted in default in case HCH 1246/26 be stayed pending the final determination of the applicant's application for rescission of judgment.

INTERIM RELIEF GRANTED

Pending the return day, the following relief is granted:

1. The execution of the default judgment or further proceedings in HCH 1246/26 is hereby stayed.
2. The first respondent is interdicted from carrying out any evictions or demolitions at Stand 1359 of Lot 14, Skitzkop, Zvimba District.

WAMAMBO J:……

Pesanai and Tshuma Corporate Attorneys, applicants' legal practitioners
Jiti law chambers, second respondent legal practitioners